

Division's Trade Secret submission process. Those instructions may be accessed here: <https://www.ncdoi.gov/insurance-industry/form-and-rate-filings/life-and-health/form-and-rate-filing-instructions#trade-secret-instructions>

- I. **The SERFF Rate/Rule Schedule should be marked Confidential in its entirety. Each Schedule Item on the tab should be marked Confidential. However, do not mark the entire SERFF rate filing as Confidential. If this occurs, the filing will be rejected in SERFF and deactivated by CMS and a new rate filing will need to be submitted.**
- J. **See pages 6 & 7 of this document - SERFF – NCDOI REQUIRED FIELDS FOR ACA PY26 RATE FILINGS for guidance on SERFF field input.**

Insurers should understand that for filings described in Section I above, as required by 45 CFR §154.301(b), by 8/1/2025, NCDOI will make public a summary of these filings, including the company name, market, and average change in rates requested, as well as Parts II and III of the Rate Filing Justification included in the May 16th submission. CMS/CCIIO is expected to publish information from Parts I, II and III for ALL rate submissions on 8/1/2025. Lastly, NCDOI will, after approval, make public a summary of final rates and the final versions of Parts II and III from all filings on a uniform date but no later than the first day of open enrollment.

II. For Non-grandfathered ACA-compliant Single-Risk Pool Rate Filings for the 2026 Plan Year in the individual or small group markets in which the threshold calculation is less than 15%.

Insurers will be expected to submit a demonstration of the threshold calculation for each product contained in the single-risk pool rate filing as part of NC's actuarial memorandum requirements.

- A. Insurers are expected to submit an annual single-risk pool rate filing for the 2026 Plan Year for each market (as applicable) via SERFF.
- B. Recommended Due Date – May 16, 2025, but no later than May 23, 2025 - Insurers are expected to submit ALL single-risk pool filings to NCDOI and CMS/CCIIO. Note that if you are unable to submit your rate submission on May 16, 2025, please contact Mary Jo Wegenast at LHinbox@NCDOI.gov.
- C. Insurers should use SERFF Filing Type '2026 Plan Year ACA Single-Risk Pool Rate Filing' AND one of the following SERFF Types of Insurance (TOI) for each submission; H16I, H16G, HOrg02I, HOrg02G (**Note, these are the only TOI's allowed for this Filing Type**).
- D. Insurers are expected to submit all state required information for an ACA-compliant single-risk pool filing as outlined in previous guidance and/or per SERFF filing requirements, including Parts I and III of the federal Rate Filing Justification as applicable. **Please note that SERFF rate filings may NOT be re-opened after a final determination is made on the URRT tab. CMS/CCIIO will need to be contacted, and the submission deactivated in HIOS and a new rate filing submitted in SERFF. To avoid this, please see section III. Guidance on Unsolicited Amendments/Updates to Pending Single-Risk Pool Rate Filings below for NCDOI amendment submission deadlines.**
- E. Insurers are expected to submit the redacted version of the federal Actuarial